

S v Makwanyane and Another

S v MAKWANYANE AND ANOTHER 1995 (3) SA 391 (CC)

Court: Constitutional Court of South Africa

Coram: Chaskalson P et al.

Date: 6 June 1995

Holding

The death penalty, as provided for in s 277(1)(a) of the Criminal Procedure Act 51 of 1977, is inconsistent with the interim Constitution and invalid. Capital punishment violates the right to life, the right to dignity, and the right not to be subjected to cruel, inhuman or degrading punishment.

Key reasoning (Chaskalson P)

- The Constitution is the supreme law; all law and conduct must conform to it.
- Public opinion, while relevant, is not a substitute for the Court's duty to interpret the Constitution.
- The death penalty is a form of punishment that is irreversible and allows for the risk of error.
- Proportionality and the values of ubuntu inform the Bill of Rights analysis.

Significance

Foundational judgment on constitutional values, ubuntu, and the interpretive approach of the Constitutional Court. Frequently cited on dignity and the limitation analysis.

NOTE: Case summary for educational SA research use. Read the full judgment for authoritative content.

— End of curated extract. Verify official text before reliance. —